

times near the City of London, some inquests are taken of trespasses, and other things done within the said city, betwixt some of the same city only, and betwixt them and foreigners jointly, or betwixt foreigners; and the conusance of which trespasses and other things belongs to the Steward and Marshal by reason of the verge, that all such inquests shall be taken within the City of London, and not elsewhere; upon which it was inferred, that of all trespasses done within the verge betwixt what persons soever, the conusance belongs to the Steward and Marshal of the Houshold, which is an exposition of the High Court of Parliament, & (b) *contemporanea expositio est fortissima in lege*: so that as well before the statute of 28 E. 1. as by the words of the same statute, and by the Act of 30 E. 1. the Steward and Marshal of the Houshold have jurisdiction to determine all pleas of trespass betwixt any persons whatsoever. And they cited also the statutes of 5 E. 3. cap. 2. and 10 E. 3. cap. 3. by which it appears, that the Court has jurisdiction not only of trespasses of the houshold, but also of other trespasses. And they held that this word [trespass] shall be extended beneficially for the jurisdiction of the said Court, because their ancient jurisdiction was so much restrained by the said Act, and therefore they conceived that all actions, the entry whereof is in *placito transgres*, &c. shall be within this word [trespass]. And therefore [70 b] pleas of *ejectione firmæ*, *trespas quare clausum fregit*, of goods taken away, assault, battery, wounding, trespass upon the case, upon trover and *assumpsit*, and other trespasses upon the case, shall be taken within this word [trespass], and the jurisdiction thereof belongs to the Steward and Marshal of the Houshold, though none of the parties are of the King's Houshold: and they concluded that infinite precedents might be shewed at all times after the making of the said Act of 28 E. 1. That they have held pleas of trespass, as well trespass upon the case, as other trespasses within the verge although neither of the parties was of the King's Houshold, (e) & *optimus legum interpres consuetudo*.

And as to the other point, admitting the Court had not jurisdiction of the cause, yet the proceeding in it (being a Court of Record) is not void, but voidable by writ of error. Also the Marshal of the Marshalsea of the Houshold, and the officer of the staff, are officers and ministers of the Court, and it would be against reason to punish them for executing the precept and warrant of the Court, when if they had refused, the Court would have punished them for their disobedience, and therefore the rule is, *quicumque jussu judicis aliquid fecerit, non videtur dolo malo fecisse, quia parere necesse est*, and in 26 E. 3. 70. b. there it is taken for an maxim, that the thing which an officer doth by warrant or command of a Court, cannot be said against the peace: and Doct. & Stud. 150. the King's officers are bound to execute the King's writs at their peril: and they cited and strongly urged the book in 7 E. 3. 23. b. and 24. a. where Alice brought an action of trespass against one William, of false imprisonment: the defendant said, that before the imprisonment it was commanded in the Marshalsea, that if any woman followed the Houshold of our lord the King, she should be taken and imprisoned, and this Alice followed the Houshold of the King; wherefore John Claydon then Marshal commanded this William, who is gaoler, to take her; wherefore he took her by his commandment, and for such cause, and we do not conceive that she can assign any wrong in our person, and there the rule of the book is, that William, the defendant, did no wrong, though he received her, whether the cause were allowable or not; for he ought to be obedient to his Sovereign; but the gaoler ought always to receive whomsoever is sent to him by his Sovereign, be the cause of the taking allowable or not; and there issue was taken, whether the defendant had the plaintiff of the delivery of the Marshal. So in the case at Bar, the officers of the Court are not to dispute their authority, but ought to be obedient, and execute the warrants and commands of the Judges of the Court: and upon this ground are the [71 a] books in 8 E. 3. 38. 17 E. 3. 66. 19 E. 3. *Quare non admisit* 7 Plo. Com. *Morgan's case*, 12, 13. 7 H. 4. 27. 11 H. 4. 35. 9 H. 6. 20. 2 R. 3. 10. 21 H. 7. 22. 14 H. 8. 16. *Vide temp.* E. 1. Assise 402. 32 E. 1. *ibid.* 378. 17 E. 2. Ass. 373. 19 E. 3. *Scire facias* 12. 31 Ass. 19. 10 E. 3. 47. 14 H. 4. 24. 21 E. 4. 66. 21 H. 6. 36. 21 H. 6. *Trespass* 50.

(b) Cart. 20. 2 Inst. 11. 4 Inst. 138.

(e) 2 Co. 81. a. 3 Inst. 18.